

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

DECLARATION OF STEVEN W. BLOCK

I, Steven W. Block, being first duly sworn upon oath, depose and say:

1. I am over the age of eighteen, have personal knowledge of the matters attested to herein, and am capable of testifying to them.

2. I am an attorney and represent respondent Service by Air, Inc. ("SBA") in this proceeding.

3. Attached as Exhibit 1 are copies of relevant pages of Initial Disclosures dated October 19, 2017 produced by complainant CMI Distribution, Inc. ("CMI").

4. Attached as Exhibit 2 are copies of relevant pages of CMI's discovery responses dated January 12, 2018 and February 1, 2018.

5. Of 1,589 documents SBA produced to CMI in discovery, 725 reference "Jalowiecki," including 300 emails from and 255 emails to him. CMI produced to SBA at least

50 emails that are to, from, or copied to Jalowiecki. Copies of sample documents are attached as Exhibit 3.

6. Attached as Exhibit 4 are copies of relevant pages of the transcript of the deposition of CMI's FRCP 30(b)(6) designee Maria Vega.

7. Attached as Exhibit 5 are copies of CMI's notices of deposition seeking to depose SBA's 30(b)(6) designee; Ed Zasada; and Bryan Tincher.

8. Those depositions took place on March 1, 2018. CMI produced its 30(b)(6) designee and expert for deposition on February 28, 2018. Deposition scheduling was by agreement of counsel to accommodate their and witnesses' availability.

9. I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief.

EXECUTED at Seattle, WA this 10 day of May, 2018.



Steven W. Block

EXHIBIT 1

BEFORE THE
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RESPONDENTS.

CMI DISTRIBUTION'S INITIAL DISCLOSURES

Pursuant to 46 C.F.R 502.141(b), the Complainant, CMI Distribution, Inc. ("CMI"), provides the following information:

1. Individuals with Knowledge of the Relevant Facts

A. Maria Teresa Vega is the Financial Controller for CMI. Vega communicated directly with SBA Consolidators, Inc. (SBA), has knowledge of the demurrage charged by SBA and the amounts invoiced and paid by CMI. Vega is currently employed by CMI and can be contacted via CMI counsel.

B. Jerry Starr is a Managing Partner of CMI. Starr has knowledge of the demurrage charged by SBA and the amounts invoiced and paid by CMI. Starr can be contacted via CMI counsel.

C. Diana Alvarado was an Account Manager for CMI. Alvarado communicated with SBA and has knowledge of the shipments. Alvarado is no longer employed by CMI; her address is 1650 Buttonwood Circle Apt. 3124 Schaumburg, IL 60173.

- D. Michael Miller has knowledge of the shipments and demurrage charged by SBA.
- E. Ed Zasada has knowledge of the shipments and demurrage charged by SBA.
- F. Bryan Tincher has knowledge of the shipments and demurrage charged by SBA.

2. Description of Documents

The documents that CMI is relying upon in support of its claims are the bills of lading, invoices for the containers at issue, airway bills, the customs form 3461 for the containers at issue, correspondence between SBA and CMI, and exhibits attached to CMI's response to supplement the record. CMI has requested but not received documents from SBA. CMI reserves the right to supplement its documents once it retains documents in discovery.

3. Damages

To date, CMI has not been give nor does it have in its possession complete records of the total amount of demurrage improperly assessed by SBA. CMI estimates that it was improperly charged approximately \$248,750 in demurrage charges. CMI will supplement its damage calculations when such information is revealed during discovery.

Respectfully Submitted,



David P. Street
Brendan Collins
GKG LAW, P.C.
The Foundry Building
1055 Thomas Jefferson Street NW
Suite 500
Washington, DC 20007
Telephone: 202-342-5200
Facsimile:

202-342-5219

EXHIBIT 2

BEFORE THE
FEDERAL MARITIME COMMISSION

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CMI DISTRIBUTION, INC.

COMPLAINANT,

V.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY
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RESPONDENTS.

**CMI DISTRIBUTION, INC.'S ANSWERS TO SERVICE BY AIR, INC.
AND RADIANT CUSTOMS SERVICES, INC.'S FIRST SET OF
INTERROGATORIES AND REQUEST FOR PRODUCTION**

GENERAL OBJECTIONS

These general objections apply to each of Respondent's interrogatories and document request and are in addition to any specific objections set forth with respect to individual interrogatories and document requests.

- A. The Complainant objects to the Limitation Respondent's discovery requests and instructions to the extent they seek to impose obligations on the Complainant beyond those established by the Federal Rules of Civil Procedure.
- B. The Complainant objects to the Respondent's Interrogatories and document requests to the extent that they may be construed as calling for information that is subject to a claim of privilege or immunity, including, without limitation, the attorney-client privilege or work product immunity, and the Complainant hereby asserts such privileges or immunities and objects to the production of information subject thereto.

INTERROGATORY NO. 16: Identify each person you believe has any knowledge, information, or documents that may be relevant to the claims and defenses raised by any party to this action, and all answers and responses you submit to the preceding discovery requests. For each person identified, describe the specific knowledge, information, or documents you believe he/she has. This interrogatory is intended to include, but not be limited to, identification of any and all witnesses you will call at trial.

ANSWER: CMI objects to Interrogatory No. 16 on the grounds that it is compound. CMI further objects to the interrogatory to the extent that it requires CMI to identify any witnesses that it will call at trial at this juncture. Notwithstanding these objections and without waiver thereof, CMI asserts that it reserves the right to amend or modify its response to this Interrogatory and to identify potential witnesses after receipt of discovery from the Respondents. CMI further asserts that individuals with knowledge of the relevant facts include the following:

- A. Maria Teresa Vega is the financial controller for CMI. Vega communicated directly with SBA, has knowledge of the demurrage charged by SBA and the amounts invoiced and paid by CMI. Vega is currently employed by CMI and can be contacted via CMI counsel.**
- B. Jerry Starr is a Managing Partner of CMI. Starr has knowledge of the demurrage charged by SBA and the amounts invoiced and paid by CMI. Starr can be contacted via CMI counsel.**
- C. Diana Alvarado was an Account Manager for CMI. Alvarado communicated with SBA and has knowledge of the shipments. Alvarado is no longer employed by CMI; her address is 1650 Buttonwood Circle Apt. 3124 Schaumburg, IL 60173.**
- D. Michael Miller has knowledge of the shipments and demurrage charged by SBA.**
- E. Ed Zasada has knowledge of the shipments and demurrage charged by SBA.**
- F. Bryan Tincher has knowledge of the shipments and demurrage charged by SBA.**

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INC. COMPLAINANT,

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KNOWN AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

**CMI DISTRIBUTION, INC'S SUPPLEMENTAL RESPONSE TO
SERVICE BY AIR, INC. AND RADIANT CUSTOMS SERVICES,
INC'S FIRST SET OF INTERROGATORIES AND REQUEST FOR
PRODUCTION**

GENERAL OBJECTIONS

These general objections apply to each of Respondent's interrogatories and document request and are in addition to any specific objections set forth with respect to individual interrogatories and document requests.

- A. The Complainant objects to the Limitation Respondent's discovery requests and instructions to the extent they seek to impose obligations on the Complainant beyond those established by the Federal Rules of Civil Procedure.
- B. The Complainant objects to the Respondent's Interrogatories and document requests to the extent that they may be construed as calling for information that is subject to a claim of privilege or immunity, including, without limitation, the attorney-client privilege or work product immunity, and the Complainant hereby asserts such privileges or immunities and objects to the production of information subject thereto.

ANSWER: CMI has not yet determined whom it will be calling as an expert witness. CMI will disclose such information when it makes that determination pursuant to the existing scheduling order.

REQUEST FOR PRODUCTION NO. 19: Produce all documents related to your answer to the preceding interrogatory. Your response should include, but not be limited to, all file materials generated or obtained by each identified expert and all correspondence to or from the expert pertinent to his/her expert opinions.

RESPONSE: CMI has not yet determined whom it will be calling as an expert witness. CMI will disclose non-privileged information when it makes that determination and when it is required to do so pursuant to the existing scheduling order. CMI does not currently have such documents in its possession.

REQUEST FOR PRODUCTION NO. 20: Produce any and all documents and other material things which relate to any of the allegations of your Verified Complaint, and any of the Respondents' Answers thereto. This request for production is intended to include, but not be limited to, any and all documents and other material things which you will offer as evidence at trial which you have not produced in response to any other request for production.

RESPONSE: CMI objects to Request for Production No. 20 as being overly broad and unduly burdensome. CMI further asserts that CMI has not yet made the determination what documents and/or other materials it will be offering as evidence at trial.

INTERROGATORY NO. 16: Identify each person you believe has any knowledge, information, or documents that may be relevant to the claims and defenses raised by any party to this action, and all answers and responses you submit to the preceding discovery requests. For each person identified, describe the specific knowledge, information, or documents you believe he/she has. This interrogatory is intended to include, but not be limited to, identification of any and all witnesses you will call at trial.

ANSWER: CMI objects to Interrogatory No. 16 on the grounds that it is compound. CMI further objects to the interrogatory to the extent that it requires CMI to identify any witnesses that it will call at trial at this juncture. Notwithstanding these objections and without waiver thereof, CMI asserts that it reserves the right to amend or modify its response to this Interrogatory and to identify potential witnesses after receipt of discovery from the Respondents. CMI further asserts that individuals with knowledge of the relevant facts include the following:

- A. Maria Teresa Vega is the financial controller for CMI. Vega communicated directly with SBA, has knowledge of the demurrage charged by SBA and the amounts invoiced and paid by CMI. Vega is currently employed by CMI and can be contacted via CMI counsel.
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- D. Michael Miller has knowledge of the shipments and demurrage charged by SBA.
- E. Ed Zasada has knowledge of the shipments and demurrage charged by SBA.
- F. Bryan Tincher has knowledge of the shipments and demurrage charged by SBA.



David Street
Brendan Collins
GKG LAW, PC
1055 Thomas Jefferson Street, NW
Suite 500
Washington, DC 20007
Telephone: 202.342.5200
Facsimile: 202.342.5299
Email: bcollins@gkglaw.com

Attorneys for Complainant
CMI Distribution, Inc.

DATE: February 1, 2018

EXHIBIT 3

From: Bruce Yue [mailto:goodvinylgloves@gmail.com]

Sent: Thursday, July 31, 2014 9:19 PM

To: Jay Jalowiecki; wsfpo

Cc: 'Bryan Tincher (tincherb@sbaglobal.com)'; Jeff Percival; 'Michael Miller (millerm@sbaglobal.com)'; Kyle O'laughlin

Subject: Re: RE: booking ship for PO#0004941

Dear Jay,

OK. I will make booking with SBA.

Thank you.

Bruce Yue

Export manager

Zibo HongYeShangQin Plastic&Rubber Co.,Ltd

Tel/Fax: +86-533-3811696 Cell: +86-18265838855

MSN: brucehs@hotmail.com Skype: zdyuebing

Website: www.hongyeshangqin.cn

Address: The Industrial Zone, Fangzhen Town, Zibo, China.

From: [Jay Jalowiecki](mailto:Jay.Jalowiecki@las-sweg.com)

Date: 2014-08-01 01:12

To: [Bruce Yue](mailto:Bruce.Yue@wsfpo.com); wsfpo

CC: 'Br an Tincher tincherb_sba lobal.com'; [Jeff Percival](mailto:Jeff.Percival@sbaglobal.com); 'Michael Miller millerm_sba lobal.com'; [K le O'laughlin](mailto:Kyle O'laughlin@sbaglobal.com)

Subject: RE: booking ship for PO#0004941

NO BRUCE USE SBA NOT UTI FOR THIS SHIPMENT PLEASE EMAIL BELOW RECEIPINATS FOR THIS BOOKING AND ALL GOING FORWARD

THANKS

erwin.hsu@las-sweg.com

dark.tang@las-sweg.com

JAY J

CMI DISTRIBUTION/PACKAGING

CMI00643

555 ALLENDALE DR
WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM
847-947-7400 OFFICE
847-947-7418 FAX

From: Bruce Yue [[mailto: oodvin lgloves mail.com](mailto:oodvin_lgloves@mail.com)]
Sent: Wednesday, July 30, 2014 9:56 PM
To: wsfpo
Cc: Jay Jalowiecki
Subject: Re: booking ship for PO#0004941

Hello Jeff,

Have you received my last email about booking issue of PO#0004941 which will be finished on Aug.5? I need to confirm with you if forwarder 'UTI' is ok and when will make booking for this PO.

Looking forward to your reply.

Thank you.

Bruce Yue
Export manager
Zibo HongYeShangQin Plastic&Rubber Co.,Ltd
Tel/Fax: +86-533-3811696 Cell: +86-18265838855
MSN: [bruceh s hotmail.com](mailto:bruceh_s@hotmail.com) Skype: zdyuebing
Website: www.hongyeshangqin.cn
Address: The Industrial Zone, Fangzhen Town, Zibo, China.

From: [Bruce Yue](#)
Date: 2014-07-28 14:25
To: [wsfpo](#)
Subject: booking ship for PO#0004941
Hello Jeff,

PO#0004941 will be finished on Aug.5, should I still make booking with UTI ?

Waiting for your reply.

Thank you.

Bruce Yue
Export manager
Zibo HongYeShangQin Plastic&Rubber Co.,Ltd
Tel/Fax: +86-533-3811696 Cell: +86-18265838855
MSN: [bruceh s hotmail.com](mailto:bruceh_s@hotmail.com) Skype: zdyuebing
Website: www.hongyeshangqin.cn

CMI00644

Address: The Industrial Zone, Fangzhen Town, Zibo, China.

From: Jay Jalowiecki
To: Bryan Tincher; Bonnie Crowley; Maria Teresa Vega
Sent: 2/9/2015 9:16:46 AM
Subject: RE: updates

Hey can u send a POD for the file

----- Original message -----

From: Bryan Tincher <tincherb@sbaglobal.com>
Date: 02/09/2015 9:03 AM (GMT-06:00)
To: Jay Jalowiecki <jayj@cmipackaging.com>
Subject: RE: updates

26-Jan

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD

811 Thorndale Ave

Bensenville, IL 60106

630-616-1212

Fax 630-616-1112

cell 847-212-3051

From: Jay Jalowiecki [<mailto:jayj@cmipackaging.com>]
Sent: Monday, February 09, 2015 9:02 AM
To: Bryan Tincher
Subject: RE: updates

CAN U FIND OUT WHAT DATE PLEASE

THANKS

RADIANT000354

From: Bryan Tincher [<mailto:tincherb@sbaglobal.com>]
Sent: Monday, February 09, 2015 8:55 AM
To: Jay Jalowiecki
Subject: RE: updates

AKLU6300077 delivered last month

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD

811 Thorndale Ave

Bensenville, IL 60106

630-616-1212

Fax 630-616-1112

cell 847-212-3051

From: Jay Jalowiecki [<mailto:jayj@cmipackaging.com>]
Sent: Monday, February 09, 2015 8:54 AM
To: Bryan Tincher
Subject: RE: updates

Ok but neither have delivered? Correct?

Thanks

From: Bryan Tincher [<mailto:tincherb@sbaglobal.com>]
Sent: Monday, February 09, 2015 8:52 AM
To: Jay Jalowiecki

RADIANT000355

Subject: RE: updates

It is \$5050.00

Your factory booked this with KKFU1508648 and this is still sitting there though it has been telex released but Maria wants me to hold it because they owe you money.

So I don't have the demurrage yet for both of them.

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD

811 Thorndale Ave

Bensenville, IL 60106

630-616-1212

Fax 630-616-1112

cell 847-212-3051

From: Jay Jalowiecki [mailto:jayj@cmipackaging.com]

Sent: Monday, February 09, 2015 8:44 AM

To: Bryan Tincher

Subject: RE: updates

Hey Bryan

Can you tell me when this container delivered to Hercules and charges if available

Thanks

RADIANT000356

AKLU6300077

From: Bryan Tincher [<mailto:tincherb@sbaglobal.com>]
Sent: Thursday, February 05, 2015 8:54 AM
To: Maria Teresa Vega; Bonnie Crowley; Michael Miller; Jay Jalowiecki; Ed Zasada
Subject: updates

See attached update.

Please advise on the containers highlighted in RED. Some are very old. Demurrage will be extremely high.

Also, one container in Alabama is still pending. Maria, do you want me to strip it and warehouse it?

We may have to slow down on new bookings until these old ones are cleared and your credit limit is near to being reached.

Sincerely

Bryan J. Tincher

Import/Export Manager



SBA Global-ORD

811 Thorndale Ave

Bensenville, IL 60106

630-616-1212

Fax 630-616-1112

cell 847-212-3051

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RADIANT000357

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From: Jay Jalowiecki
To: Bryan Tincher
CC: Michael Miller
Sent: 5/27/2014 12:47:52 PM
Subject: RE: drop container

Awesome!!!
Thanks

JAY J
CMI DISTRIBUTION/PACKAGING
555 ALLENDALE DR
WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM
847-947-7400 OFFICE
847-947-7418 FAX

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]
Sent: Tuesday, May 27, 2014 2:47 PM
To: Jay Jalowiecki
Cc: Michael Miller
Subject: RE: drop container

The driver is on his way.
I sent an email to Evergreen this morning to confirm telex release once they get payment.

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Jay Jalowiecki [mailto:jayj@cmipackaging.com]
Sent: Tuesday, May 27, 2014 2:45 PM
To: Bryan Tincher
Cc: Michael Miller
Subject: RE: drop container

HEY BRYAN
ARE WE GOING TO BE OK FOR THE PICK UP TODAY ON THIS ONE AND HAVE WE REACHED OUT TO
CHINA FOR TELEX RELEASE ON STIR STICK SO WE HAVE IT IN AM
THANKS VERY MUCH!!!

JAY J
CMI DISTRIBUTION/PACKAGING
555 ALLENDALE DR

WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM
847-947-7400 OFFICE
847-947-7418 FAX

From: Bryan Tinchler [<mailto:tincherb@sbaglobal.com>]
Sent: Tuesday, May 27, 2014 12:57 PM
To: Jay Jalowiecki
Cc: Michael Miller
Subject: RE: drop container

okay

Sincerely
Bryan J. Tinchler
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

From: Jay Jalowiecki [<mailto:jayj@cmipackaging.com>]
Sent: Tuesday, May 27, 2014 12:54 PM
To: Bryan Tinchler
Cc: Michael Miller
Subject: RE: drop container

Ready in a hour

----- Original message -----
From: Bryan Tinchler
Date: 05/27/2014 9:14 AM (GMT-06:00)
To: Jay Jalowiecki
Cc: Michael Miller
Subject: RE: drop container

Okay

Sincerely
Bryan J. Tinchler
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

RADIANT001047

From: Jay Jalowiecki [mailto:jayj@cmipackaging.com]
Sent: Tuesday, May 27, 2014 9:00 AM
To: Bryan Tincher
Cc: Michael Miller
Subject: RE: drop container

Yes guys unloading right now I'm hoping its empty by 2 pm the latest I will let you know around 12
Thanks

JAY J
CMI DISTRIBUTION/PACKAGING
555 ALLENDALE DR
WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM
847-947-7400 OFFICE
847-947-7418 FAX

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]
Sent: Tuesday, May 27, 2014 8:01 AM
To: Jay Jalowiecki
Cc: Michael Miller
Subject: drop container

Jay
Will you have the container empty today?
Demurrage will begin tomorrow.

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

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RADIANT001048

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From: Bryan Tincher
To: Jay Jalowiecki
Sent: 2/10/2015 12:52:48 PM
Subject: TARIFF
Attachments: CMITARIFF.xlsx

Sincerely
Bryan J. Tincher
Import/Export Manager



SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051



DATE: October 13, 2014

811 Thorndale Ave, Bensenville, IL 60106 630-616-1212

CMI PACKAGING AND DISTRIBUTION FOB TARIFF

EFFECTIVE OCTOBER 31, 2014

ORIGIN	DESTINATION	PORT OF DISCHARGE	VIA	20' CONT	40' CONT	40 HC CONT							
POLYWEL	CHICAGO	SHANGHAI	VANCOUVER	\$3,467.00	\$4,130.00	\$4,130.00							
EVERBRIGHT													
EVERGREEN	CHICAGO	DALIAN	LONG BEACH	\$3,440.00	\$4,120.00	\$4,120.00							
CHANGLE, ZIBO, YANTAI, WEIFANG	CHICAGO	QINGDAO	VANCOUVER	\$3,467.00	\$4,130.00	\$4,130.00							
CHANGLE	BIRMINGHAM	QINGDAO	LONG BEACH	\$4,000.00	\$4,900.00	\$5,050.00							
YANTAI	PHOENIX	QINGDAO	LONG BEACH	\$3,470.00	\$3,950.00	\$4,050.00							
YANTAI	PHILADELPHIA	QINGDAO	NEW YORK	\$4,550.00	\$5,200.00	\$5,400.00							
POLYEL	LAS VEGAS	SHANGHAI	LONG BEACH		\$4,575.00	\$4,575.00							
EVERGREEN													
EVERGREEN	LAS VEGAS	DALIAN	LONG BEACH		\$4,665.00	\$4,665.00							
CHANGLE, ZIBO YANTAI, WEIFANG	LAS VEGAS	QINGDAO	LONG BEACH		\$4,615.00	\$4,615.00							

COST IS BASED FOB INCOTERMS. ALL ORIGIN FEES PAID BY SHIPPER.

QUOTE INCLUDES CUSTOMS CLEARANCE AND DRAYAGE AT DESTINATION

ALL RATES ARE SUBJECT TO SBA GLOBAL TERMS AND CONDITIONS

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QUOTE DOES NOT INCLUDE DEMURRAGE AND/OR DETENTION

From: Bryan Tincher
To: Jay Jalowiecki
Sent: 2/18/2015 8:50:43 AM
Subject: RE: FREIGHT AND DUTIES FOR CONTAINER GLDU9630402 AND TEMU5582028
Attachments: CMITARIFFA.xlsx

It was discussed last with Ed/Mike Miller with Mike.
See attached.

Sincerely
Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Jay Jalowiecki [mailto:jayj@cmipackaging.com]
Sent: Wednesday, February 18, 2015 10:45 AM
To: Bryan Tincher
Subject: RE: FREIGHT AND DUTIES FOR CONTAINER GLDU9630402 AND TEMU5582028

So the tariff is useless then you telling me right now??????

JAY J
CMI DISTRIBUTION/PACKAGING
555 ALLENDALE DR
WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM
847-947-7400 OFFICE
847-947-7418 FAX

-----Original Message-----

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]
Sent: Wednesday, February 18, 2015 10:43 AM
To: Jay Jalowiecki
Subject: RE: FREIGHT AND DUTIES FOR CONTAINER GLDU9630402 AND TEMU5582028

There was a GRI on Jan 1st.

Sincerely
Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Jay Jalowiecki [mailto:jayj@cmipackaging.com]
Sent: Wednesday, February 18, 2015 10:40 AM
To: Bryan Tincher
Subject: RE: FREIGHT AND DUTIES FOR CONTAINER GLDU9630402 AND TEMU5582028

Hey Bryan

RADIANT002757

See below is the cost for freight for this container supposed to be 5350 or 4130 zibo to Chicago please advise asap thanks

CLHU8658659
\$5350.00 OCEAN
\$206.89 DUTIES

JAY J
CMI DISTRIBUTION/PACKAGING
555 ALLENDALE DR
WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM
847-947-7400 OFFICE
847-947-7418 FAX

-----Original Message-----

From: Bryan Tincher [mailto:tincherb@sbaglobal.com]
Sent: Monday, February 16, 2015 12:50 PM
To: Jay Jalowiecki
Subject: RE: FREIGHT AND DUTIES FOR CONTAINER GLDU9630402 AND TEMU5582028

CAIU2795700
\$4500.00 OCEAN
\$1088.05 DUTIES

NYKU3251483
\$4500.00
\$1548.94 DUTIES
\$800.00 PORT CONGESTION SURCHARGE

CLHU8658659
\$5350.00 OCEAN
\$206.89 DUTIES

Sincerely
Bryan J. Tincher
Import/Export Manager

SBA Global-ORD
811 Thorndale Ave
Bensenville, IL 60106
630-616-1212
Fax 630-616-1112
cell 847-212-3051

-----Original Message-----

From: Jay Jalowiecki [mailto:jayj@cmipackaging.com]
Sent: Monday, February 16, 2015 12:37 PM
To: 'Bryan Tincher (tincherb@sbaglobal.com)'
Subject: FREIGHT AND DUTIES FOR CONTAINER GLDU9630402 AND TEMU5582028

HEY SORRY TO ASK AGAIN

THEN ALSO SINCE IM SENDING THEM EMAIL
CAN I GET THE FREEGHT AND DUTIES ON THE 3 DELIVERING TODAY THANKS

JAY J
CMI DISTRIBUTION/PACKAGING
555 ALLENDALE DR
WHEELING , IL 60090
JAYJ@CMIPACKAGING.COM<mailto:JAYJ@CMIPACKAGING.COM>
847-947-7400 OFFICE

RADIANT002758

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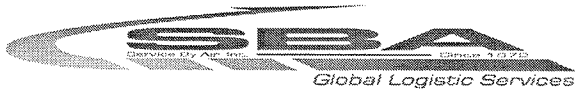
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DATE: February 1, 2015

811 Thorndale Ave, Bensenville, IL 60106 630-616-1212

CMI PACKAGING AND DISTRIBUTION FOB TARIFF

EFFECTIVE: FEBRUARY 2015

ORIGIN	DESTINATION	PORT OF DISCHARGE	VIA	20' CONT	40' CONT	40 HC CONT							
POLYWEL	CHICAGO	SHANGHAI	VANCOUVER	\$4,500.00	\$5,350.00	\$5,350.00							
EVERBRIGHT													
EVERGREEN	CHICAGO	DALIAN	LONG BEACH	\$4,761.00	\$5,525.00	\$5,575.00							
CHANGLE, ZIBO, YANTAI, WEIFANG	CHICAGO	QINGDAO	VANCOUVER	\$4,753.00	\$5,500.00	\$5,543.00							
CHANGLE	BIRMINGHAM	QINGDAO	LONG BEACH	\$5,047.00	\$6,137.00	\$6,287.00							
YANTAI	PHOENIX	QINGDAO	LONG BEACH	\$4,070.00	\$4,655.00	\$5,709.00							
YANTAI	PHILADELPHIA	QINGDAO	NEW YORK	\$5,070.00	\$6,040.00	\$6,320.00							
POLYEL	LAS VEGAS	SHANGHAI	LONG BEACH		\$5,080.00	\$5,080.00							
EVERGREEN													
EVERGREEN	LAS VEGAS	DALIAN	LONG BEACH		\$5,165.00	\$5,165.00							
YANTAI, WEIFANG	EDISON	QINDGDAO	NEW YORK	\$5,140.00	\$6,150.00	\$6,270.00							

COST IS BASED FOB INCOTERMS. ALL ORIGIN FEES PAID BY SHIPPER.

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QUOTE DOES NOT INCLUDE DEMURRAGE AND/OR DETENTION

EXHIBIT 4

CMI DISTRIBUTION, INC.,)
)
 Complainant,)
)
 vs.) Docket No. 17-05
)
 SERVICE BY AIR, INC., RADIANT)
 CUSTOMS SERVICES, INC. (FORMERLY)
 KNOWN AS SBA CONSOLIDATORS, INC.))
 and LAS FREIGHT SYSTEM LTD.,)
)
 Respondents.)

30(b)(6) DEPOSITION OF CMI DISTRIBUTION, INC. BY AND THROUGH MARIA T. VEGA, taken by the Respondents, pursuant to the applicable Federal Rules of Civil Procedure, pursuant to notice, commencing at 9:13 a.m., on Wednesday, February 28th, 2018, at the offices of Polsinelli, 150 North Riverside Plaza, Suite 3000, Chicago, Illinois, before Beth A. Wakenight, CSR/RPR/CRR, Certified Realtime Reporter, Certified Shorthand Reporter for the State of Illinois.

ATKINSON-BAKER, INC.
COURT REPORTERS
(800) 288-3376

www.depo.com
FILE NO. AC021C2

1 So if they needed to have the right licensing, I 2 would assume that Mike chose the right organization 3 to deliver our goods. 4 Q So you're refusing to answer my question? 5 MR. COLLINS: Objection; that's not 6 what she said. She answered your question. 7 BY MR. BLOCK: 8 Q It's a yes or no question. Do you know whether or 9 not SBA agreed to provide CMI NVOCC services? It's: 10 "yes," "no," or "I don't know"? 11 A I don't know. 12 Q Okay. The name Service By Air suggests that it's a 13 company that arranges air transportation services. 14 Would you agree with me? 15 A Yes. 16 Q But you were -- CMI was requesting primarily, almost 17 exclusively, ocean transportation services, right? 18 A Yes. 19 Q All right. Did CMI investigate whether SBA's 20 accounting and management, operational systems, were 21 designed for ocean transportation? 22 MR. COLLINS: Objection; asked and 23 answered; you specifically asked this before. 24 THE WITNESS: I'm sorry. What was the Page 54	1 MR. BLOCK: Didn't I say that? 2 MR. COLLINS: We can straighten 3 that up. 4 MR. BLOCK: Yeah, I think you're 5 right; J-A-L-O-W-I-E-C-K-I, yeah. 6 Q He was the warehouse supervisor? 7 A Yes. 8 Q What were his responsibilities in the interaction 9 with SBA? 10 A He would actually receive the containers at our 11 dock door, hand over the paperwork, do the actual 12 counts of the product that came in, confirm with the 13 purchase order when it actually arrived, and give me 14 any paperwork. 15 Q Would he have discussions with SBA regarding the 16 release of containers that were being held? 17 A Yes. 18 Q I don't remember if you listed Jerry Starr as one of 19 the people that had -- 20 A No. 21 Q -- ongoing activities? 22 A No. 23 Q He was not? 24 A No. Page 56
1 question again? 2 BY MR. BLOCK: 3 Q Did CMI investigate or research whether SBA, which 4 name suggests it's an air transportation company, 5 had operational systems, accounting systems, that 6 were designed for ocean transportation? 7 A I don't know if Mike did the research or not. 8 Q So you don't know whether CMI did that, right? 9 A No, correct. 10 Q All right. Who at CMI participated in the 11 relationship with SBA? 12 A There were numerous employees, myself included. 13 Q Can you give me a list of the ones who had primary 14 responsibility? 15 A Jay Jalowiecki, no longer with the company; Diana 16 Alvarado, no longer with the company; Mike Gallo; 17 myself; and at the time my accounts payable 18 coordinator was another employee who is no longer 19 with the company. 20 Q Okay. What was Jay Jalowiecki's position? 21 A Warehouse supervisor. 22 Q Jalowiecki is J-A-L-O-W-I-C-K-I. 23 MR. COLLINS: There is an E in there, 24 I-E-C-K-I. Page 55	1 Q I'd like to now turn your attention to the 2 collection of documents that were marked as 3 Exhibit 1, which is in the other notebook here, 4 the big notebook here. These are the first set 5 of discovery responses. And if you open that up, 6 the first 15 pages or so are the actual discovery 7 responses. And what I'd like you to do is flip 8 through about ten pages to Interrogatory Number 16. 9 The pages aren't numbered here, but you can see it 10 by the -- 11 MR. COLLINS: I think they are 12 numbered, actually. 13 MR. BLOCK: Not in the copy I have. 14 MR. COLLINS: Are you talking about 15 the answers or the -- 16 MR. BLOCK: Yeah, the answers. 17 MR. COLLINS: There is a page number 18 at the bottom. 19 MR. BLOCK: You have page numbers? 20 MR. COLLINS: Unless you're talking 21 about a different -- it's Exhibit 1. Yeah, I see a 22 page number. What's -- which request? 23 MR. BLOCK: Interrogatory 16, where in 24 the world they wrote the page numbers? Page 57

15 (Pages 54 to 57)

1 be really good -- they're, like, you know, friends 2 even, you know. So they e-mail them, talk on the 3 phone, text, FaceTime, whatever. Then I get to 4 know: Oh, by the way, we ordered 3,300 cases of 5 gloves from China. Oh, thank you. Don't you need a 6 PO, a purchase order? I'm pretty much the bully 7 there where I'm asking for purchase orders, 8 specifications on the -- you know, what did you 9 order? How many did you order? How much was the 10 price, blah, blah, blah? I also had some 11 communications with David and, you know, some of the 12 suppliers because we e-mail sometimes if there is a 13 discrepancy on the quantity or the amount or 14 anything like that. So I get the information, 15 create a purchase order. Then we just wait. 16 Q Okay. Well, at some point you make contact with 17 SBA to arrange the transportation, right? 18 A I don't. That would be Mike and Jeff. They 19 would -- they would contact them. 20 Q CMI would make -- would -- CMI would contact SBA 21 with regard to this new order, right? 22 A Correct. 23 Q Okay. What would CMI tell SBA to do and what 24 documents would CMI provide SBA? Page 82	1 China with the broker. Communications would be 2 handled through them. I don't see those 3 communications. I don't ever see any of those 4 communications. 5 Q I'm asking you questions as CMI's designee, okay? 6 When you have an agreement with a Chinese supplier, 7 when is the -- what does the agreement say about 8 terms as to when CMI will pay the Chinese supplier 9 for the commercial invoice? 10 A It depends on the supplier. 11 Q What are the different parameters of how that can 12 work out? 13 A Some suppliers require deposits. Some suppliers 14 want it paid once it's on the water. We've been 15 fortunate lately to getting, you know, the product 16 in before making payments. There has been several 17 different agreements lately, so. 18 Q Why would it be fortune for you to be able to get 19 product in before you have to make payments? 20 A Well, there is no holdup on, you know, us being able 21 to receive the container and, you know, you know, 22 put it in inventory. But it's usually not a whole 23 lot of timing; it's usually a day or two. 24 And then we make the payment to the supplier. Page 84
1 A I wouldn't know. The way it was handled with SBA, 2 there was verbal communication with Mike Miller. 3 And Jay Jalowiecki would get involved. And amongst 4 them, they would, you know, give the timeline. 5 Q They would give the timeline. Who would give who 6 the timeline? 7 A Jeff or Mike. 8 Q Jeff? 9 A Or Mike. 10 Q Jeff, who is Jeff? 11 A Jeff is one of the salesmen who also communicates 12 with -- 13 Q Or Mike Miller -- 14 A Or Mike Miller was involved. 15 Q -- would give a timeline to CMI. SBA would give 16 CMI a timeline; is that right? 17 A No. Usually it would be Mike or Jeff, would tell, 18 you know, SBA: We have a shipment coming in and 19 that's -- 20 Q Mike Gallo, I'm sorry? 21 A Mike Gallo, correct. 22 Q Maybe we should use the last name. 23 A Gallo or, yeah; so that's basically how it gets 24 taken care of. And they would handle it to through Page 83	1 Q Would CMI typically order product that it does not 2 have the means to pay for at the time that it makes 3 the order? 4 A No, pretty much have the means. 5 Q So if you had the means, why don't you pay for it 6 immediately? 7 A There is no reason why. We could pay for it 8 immediately. 9 Q Did CMI pay the Chinese suppliers immediately upon 10 receiving the commercial invoice? 11 A Lately? I mean, are you saying currently now? 12 Q I should specify. I'm asking you about during the 13 time of the relationship between CMI and SBA? 14 A Yes, we were paying the suppliers. 15 Q You paid the suppliers immediately -- 16 A Yes. 17 Q -- upon receipt of commercial invoices from the 18 suppliers? 19 A Sometimes the commercial invoice comes in, you know, 20 after it's been on the water for a while or, you 21 know, before they put it on the water. We 22 have -- they give us a time. They tell us: Pay 23 within ten days of this invoice, or pay within -- 24 usually either Mike or Jeff would come to me and Page 85

EXHIBIT 5

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

Complainant, CMI Distribution, Inc. ("CMI") hereby gives notice that in accordance with Fed. R. Civ. P. 30(b)(6), the Complainant shall take the 30(b)(6) deposition of the Respondents, Service by Air Inc. and Radiant Customs Services Inc., formerly known as SBA Consolidators, Inc. (referred to herein collectively as "SBA") in the above case by oral examination at 12:00 p.m. on Thursday March 1, 2018, at the law offices of Polsinelli, 150 N. Riverside Plaza, Suite 3000, Chicago, Illinois.

The deposition will be taken by stenographic means before a notary public or other person authorized to administer oaths. The deposition will continue from day to day until concluded.

Respondents shall designate one or more of their officers, directors or managing agents, or other person(s) who consent to testify on their behalf and, for each designee, Respondents shall designate persons with respect to the following matters.

1. The business relationship between CMI Distribution and SBA.

2. The business relationship between Service By Air, Inc., SBA Global, and SBA Consolidators.
3. SBA's billing practices in regard to CMI, including but not limited to: a) its billing of air freight charges for goods moving by ocean; b) the basis for charging CMI for demurrage; c) how daily demurrage, detention and storage rates are determined; and d) actions, including audits conducted, to ensure the accuracy of SBA invoices.
4. SBA's representation to CMI regarding SBA's tariff.
5. The business relationship between SBA and Las Freight System Ltd.
6. The business relationship between SBA and any NVOCC that transported the CMI cargo at issue.
7. The business relationship between SBA and any VOCC that transported the CMI cargo at issue.
8. The business relationship between SBA and Freight Tech and other truckers SBA used in handling the transportation of CMI cargo.
9. Steps taken to ensure the accuracy of invoices received from transportation providers SBA hired to transport CMI cargo.
10. SBA's responses to Interrogatories and document requests propounded in this action.

Dated: February 23, 2018

By: /s/ Brendan Collins
Brendan Collins

Attorney for Complainant, CMI Distribution

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,
COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

Complainant, CMI Distribution, Inc., hereby gives notice that it will take the deposition of Bryan Tincher in the above case by oral examination at 9:00 a.m. on Thursday March 1, 2018, at the law offices of Polsinelli, 150 N. Riverside Plaza, Suite 3000, Chicago, Illinois.

The deposition will be taken by stenographic means before a notary public or other person authorized to administer oaths. The deposition will continue from day to day until concluded.

Dated: February 23, 2018

By: /s/ Brendan Collins
Brendan Collins

Attorney for Complainant, CMI Distribution

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.,
COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

Complainant, CMI Distribution, Inc., hereby gives notice that it will take the deposition of Edward Zasada in the above captioned case by oral examination at 2:00 p.m. on Thursday March 1, 2018, at the law offices of Polsinelli, 150 N. Riverside Plaza, Suite 3000, Chicago, Illinois.

The deposition will be taken by stenographic means before a notary public or other person authorized to administer oaths. The deposition will continue from day to day until concluded.

Dated: February 23, 2018

By: /s/ Brendan Collins
Brendan Collins

Attorney for Complainant, CMI Distribution